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CASE #	CASE NAME	HEARING NAME
CVRI2506662	M.B. ROE VS COUNTY OF RIVERSIDE	MOTION TO SEVER ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT BY COUNTY OF RIVERSIDE

Tentative Ruling: Defendant's Motion to Sever each Plaintiff is granted. Case Management Conference and Orders to Show Cause are vacated. Trial Setting Conference is set for 1/12/27.

Severance is a procedure by which a judge may order separate trials of causes of actions or issues joined in a single action. A judge may order a separate trial of any cause of action asserted in a complaint or a cross-complaint, or any separate issue. CCP § 1048(b). Under Code of Civil Procedure section 1048, subdivision (b), a court has the discretionary power to order a separate trial of any cause of action or issue "to avoid prejudice, or when separate trials will be conducive to expedition and economy." Similarly, Code of Civil Procedure section 379.5 provides that where parties have been joined, the court may order separate trials or make other orders "as may appear just to prevent any party from being embarrassed, delayed, or put to undue expense." In exercising this discretion, the Court must consider whether severance will avoid prejudice, further the convenience of parties and witnesses, and serve the ends of justice

Such an order is appropriate to promote convenience, to avoid prejudice, and to expedite the trial of a case. CCP § 1048(b). *See Antelope Valley Groundwater Cases* (2020) 59 CA5th 241, 273 (judge has discretion to determine order in which claims or issues are bifurcated and determined, and selection and scheduling of those phased determinations will be upheld on appeal absent an abuse of discretion).

The Court finds that prejudice to the Defendant is the primary and compelling basis for granting severance in this matter. The Court is persuaded that trying these five distinct claims together creates an unacceptable risk of a "spillover effect". *People v. Soper*, 45 Cal.4th 759 (2009). As highlighted in the federal case - *Rubio v. Monsanto Co.*, consolidating disparate claims can lead to a "potentially prejudicial inference" that if the defendant is liable to one plaintiff, they must be liable to all. There is a significant danger that a jury may unconsciously associate a weaker case with a stronger one, unjustly inflaming the jury and altering the outcome against the County through mere association.

The County argues that while Plaintiffs allege a common institutional scheme, their claims arise from disparate factual circumstances involving different facilities, time periods, perpetrators, and alleged acts of abuse. Despite Plaintiffs' assertion of a "common institutional scheme," the underlying facts for each Plaintiff are highly individualized; the alleged abuse occurred at different facilities, including Twin Pines Ranch Juvenile Camp and Riverside Juvenile Hall, which are located miles apart; Plaintiffs identify at least five different alleged perpetrators (Officers 1 and 2 Jones, and

Officers 1, 2, and 3 Doe) with varying physical descriptions and no clear connection to one another; the claims span approximately six years (1998–2004), and during this period, the County's policies, procedures, and staff likely changed, meaning the evidence pertinent to one Plaintiff's detention may be irrelevant to another's; and the nature and extent of the alleged abuse vary significantly between Plaintiffs, ranging from fondling and removal of clothing to digital penetration and forced oral copulation.

The Court finds that a single trial would be overwhelming and overly burdensome for a jury. Jurors would be required to track, remember, and deliberate upon five separate sets of witnesses, medical providers, and evidentiary records with little to no overlap. The Court concludes that ordinary safeguards, such as limiting instructions or tailored verdict forms, are not as certain to thwart prejudice and confusion as severance, which will simplify and streamline the individual cases.